



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

NOV 15 2002

DOT-E 12457
(FIRST REVISION)

EXPIRATION DATE: October 31, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Arch Chemicals, Inc.
Norwalk, CT
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of calcium hypochlorite mixtures, dry, in a DOT Specification UN13H1 flexible intermediate bulk container. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.101(i)(3) and Column 8C of the Hazardous Materials table in that bulk packagings are not authorized, except as specified herein.
5. BASIS: This exemption is based on the application of Arch Chemicals, Inc. dated September 1, 2002 submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Calcium hypochlorite mixtures, dry or Calcium hypochlorite mixtures dry with more than 39 percent available chlorine (8.8 percent available oxygen)	5.1	UN1748	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT Specification UN13H1 flexible intermediate bulk container (FIBC) tested and marked to the Packing Group II level.

b. OPERATIONAL CONTROLS -

(1) Calcium hypochlorite mixtures must contain a minimum of 4.0 percent (by weight) water of hydration.

(2) After filling, but before offering for transportation, each FIBC must be held for a period of time sufficient to allow identification of any dangerous heating or decomposition.

(3) Immediately prior to loading in to a motor vehicle, each FIBC must be inspected for leaks, contamination and any dangerous heating or decomposition. Any FIBC showing evidence of leaks, contamination and any dangerous heating or decomposition may not be offered for transportation.

(4) Prior to loading, each motor vehicle must be inspected and found to be clean and free of any contaminants that might react dangerously with the calcium hypochlorite mixtures. Any screws, nails or other defects that might damage or puncture the FIBC must be removed.

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(5) The FIBCs must be loaded by Arch Chemicals, Inc. and may not be unloaded from the motor vehicle until unloading at the final destination.

(6) Transportation is limited to private or contract motor carriers under exclusive use for the transportation of the material authorized in paragraph 6 above. No other material (hazardous or non-hazardous) may be in the motor vehicle.

(7) Transportation is only authorized between the Arch Chemicals, Inc. production facility located in Charleston, TN and the Stellar Manufacturing Company facility in Sauget, IL. The maximum elapsed time between offering the material at the point of origin and unloading the material at the final destination is 48 hours.

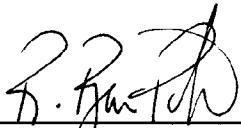
8. SPECIAL PROVISIONS: A current copy of this exemption must be maintained at each facility where the package is offered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: CHHOCHMAN/sln